

TERMS AND CONDITIONS OF SALE OF GOODS – YARN AND OTHER FABRICS (NFY)

I. PAYMENT

1. Payment shall be made by the Buyer's against delivery.
2. The Seller shall issue the invoice in favor of the buyer even though the order placed by the dealer copy of invoice will also be sent to dealer vide system generated mail.
3. In case of Sale against letter of credit (LC), LC shall be open before deliver of goods for the invoice amount and shall irrecoverable and without recourses with a schedule bank in India in favor of the Seller for the full amount of the invoice quantity. The format of LC shall be executed only after approval of the seller. LC shall be discharged by the bank in favour of Seller on presentation of invoice and/ or delivery ordered issued by the Seller, and/ or relative railway, transport receipt. LC shall not require Sellers to produce any documents to the bank other than those mention in this clause.
4. The dealer is required to make the payment as per prevailing sales policy at time of Invoicing. Sales on 7th day (RTGS) or 4th day vide Cheque for Intra-state& on 11th day (RTGS) or 8th day vide cheque for Inter-state from Invoice date.
5. The interest @ 18% shall be charged in case of delay payment, beyond due date as mentioned in clause-4.
6. If Dealer makes payment to the Company on behalf of the buyers under Dealers Agreement, Dealer shall be subrogated in place of the seller with all the rights of seller for recovery of dues from the buyer with regards to all the monies paid by dealer to the seller together with interest and all costs, charges and expenses suffered or incurred by Dealer. Dealer can also file a suit against the buyer and in no case the buyer can raise any questions even before the court of law that the seller has supplied goods to the buyer and dealer have no right to recover the money. The dealer only hasto show the proof of payment including the letter issued by the seller for payment received on behalf of buyer before the court in this regard.

II. DELIVERY

7. The Sellers are not under any obligation to give information that the goods are ready for delivery at the godown of the Seller or distributing agent (if any). However, in the event of such intimation, the Buyers shall agree to take delivery of the goods mentioned in such intimation within 24 hours from the receipt of such intimation.
8. After intimation as per para-7, buyer shall bound to take all goods ready for delivery. If buyer failed to lift goods before due date as per para-7 orlift only the part of goods then the remaining goodsshall be only held by the Sellers on account and risk of Buyers as regards to loss, damage, deterioration or otherwise. In such circumstance, the buyer shall not raise any queries or claim with regards to quality of goods on account of short lifting of goods or non-